

IN THE HIGH COURT OF SOUTH AFRICA
[GAUTENG DIVISION, PRETORIA / INSERT APPROPRIATE DIVISION]

CASE NUMBER: _____

In the matter between:

APPLICANT

and

FIRST RESPONDENT

SECOND RESPONDENT

THIRD RESPONDENT

PROOF OF SERVICE / RETURN OF SERVICE

[SELECT APPROPRIATE METHOD OF SERVICE]

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OPTION A: SHERIFF'S RETURN OF SERVICE

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I, the undersigned,

(Full names and surname)

Sheriff / Deputy Sheriff / Messenger of the Court for the district of
_____, having my offices at
_____, do hereby certify and return as follows:

1. DOCUMENTS SERVED

1.1 On _____ [date] at _____ [time], I served the following documents:

1.1.1 Notice of Motion dated _____

1.1.2 Founding Affidavit with Annexures dated _____

1.1.3 [Notice of Set Down dated _____]

1.1.4 [Court Order dated _____]

1.1.5 [Any other documents: _____]

2. PARTY SERVED - FIRST RESPONDENT

2.1 The above documents were served upon:

NAME: _____

CAPACITY: First Respondent / Representative of First Respondent

ID NUMBER: _____ (if applicable)

2.2 Method of Service:

[SELECT ONE:]

☐ PERSONAL SERVICE: I personally handed the documents to the above-named person at the following address:

Address: _____

☐ SUBSTITUTED SERVICE: I effected service by [specify method: e.g., "affixing the documents to the main entrance of the premises" / "leaving the documents with a responsible person at the premises"]

Address: _____

Person who received: _____

Relationship to Respondent: _____

☐ SERVICE ON ATTORNEY: I served the documents on the Respondent's attorney of record:

Name of Attorney: _____

Law Firm: _____

Address: _____

2.3 Date and Time of Service: _____ at _____

2.4 The person served was identified by: [method of identification: e.g., "producing ID document" / "verbal confirmation" / "known to me personally"]

3. PARTY SERVED - SECOND RESPONDENT

3.1 The above documents were served upon:

NAME: _____

CAPACITY: Second Respondent / Representative of Second Respondent

ID NUMBER: _____ (if applicable)

3.2 Method of Service:

[SELECT ONE - as per paragraph 2.2 above]

3.3 Date and Time of Service: _____ at _____

3.4 The person served was identified by: _____

4. PARTY SERVED - THIRD RESPONDENT

4.1 The above documents were served upon:

NAME: _____

CAPACITY: Third Respondent / Representative of Third Respondent

4.2 Method of Service:

[SELECT ONE - as per paragraph 2.2 above]

4.3 Date and Time of Service: _____ at _____

5. [IF SERVICE COULD NOT BE EFFECTED:]

RETURN OF NON-SERVICE

5.1 I hereby certify that I was unable to effect service on [Name of Respondent] for the following reasons:

☐ The person could not be found at the address provided

☐ The address provided is incorrect / does not exist

☐ The person refused to accept service

☐ Access to the premises was denied

☐ Other: _____

5.2 I made the following attempts to effect service:

Date	Time	Address Visited	Result
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

5.3 Enquiries made: _____

6. COSTS OF SERVICE

6.1 Service fees: R _____

6.2 Mileage (_____ km @ R __/km): R _____

6.3 Other expenses: R _____

6.4 TOTAL: R _____

7. DECLARATION

I certify that the contents of this Return of Service are true and correct to the best of my knowledge and belief.

SIGNATURE OF SHERIFF / DEPUTY SHERIFF

NAME: _____

DESIGNATION: Sheriff / Deputy Sheriff

DISTRICT: _____

DATE: _____

STAMP: [Official Sheriff Stamp]

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OPTION B: AFFIDAVIT OF SERVICE (FOR SERVICE BY ATTORNEY OR AGENT)

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I, the undersigned,

(Full names and surname)

do hereby make oath and state that:

1. IDENTITY AND CAPACITY

1.1 I am an adult [male/female] person residing at _____

1.2 I am [state capacity: e.g., "an employee of the Applicant's attorneys" / "an agent authorised to effect service" / "the Applicant's attorney"]

1.3 I am duly authorised to depose to this affidavit and to effect service of court documents.

2. DOCUMENTS SERVED

2.1 On _____ [date], I served the following documents in the above matter:

2.1.1 Notice of Motion dated _____

2.1.2 Founding Affidavit with Annexures dated _____

2.1.3 [Notice of Set Down dated _____]

2.1.4 [Court Order dated _____]

2.1.5 [Other documents: _____]

3. SERVICE ON FIRST RESPONDENT

3.1 Service was effected on [Name]: _____

3.2 Method of Service:

[SELECT ONE:]

☐ PERSONAL SERVICE

I personally handed the documents to the above-named person on _____ at

at the following address:

☐ SERVICE BY REGISTERED MAIL / COURIER

I dispatched the documents via [registered post / courier service] on _____

Tracking Number: _____

Proof of delivery attached as Annexure "____"

☐ SERVICE BY EMAIL

I transmitted the documents via email to: _____

Date and time sent: _____

Confirmation of delivery attached as Annexure "____"

☐ SERVICE BY FAX

I transmitted the documents via fax to: _____

Date and time sent: _____

Transmission report attached as Annexure "____"

☐ SERVICE ON ATTORNEY OF RECORD

I delivered/mailed the documents to the Respondent's attorney:

Name: _____

Law Firm: _____

Email: _____

Date: _____

4. SERVICE ON SECOND RESPONDENT

[Repeat format of paragraph 3 above]

5. SERVICE ON THIRD RESPONDENT

[Repeat format of paragraph 3 above]

6. SERVICE ON ADDITIONAL PARTIES

6.1 The National Credit Regulator:

Method: [Email / Registered Post / Hand Delivery]

Address/Email: _____

Date: _____

[Proof attached as Annexure "___"]

6.2 [Debt Counsellor - if applicable]:

Name: _____

Method: _____

Date: _____

[Proof attached as Annexure " ____ "]

6.3 [Credit Bureaus - if applicable]:

[List each bureau with method and date of service]

7. CONFIRMATION OF DELIVERY

7.1 [If applicable:] I have received confirmation of delivery/receipt of the documents from:

7.1.1 First Respondent on _____

7.1.2 Second Respondent on _____

7.1.3 Third Respondent on _____

7.2 Copies of delivery confirmations are attached hereto as Annexure(s) " _____ ".

8. COMPLIANCE WITH RULES

8.1 Service was effected in accordance with the Rules of Court.

8.2 The time periods prescribed by the Rules have been complied with.

8.3 [If applicable:] Alternative service was authorised by order of court dated _____.

9. DOCUMENTS RETAINED

9.1 I retain in my possession copies of all documents served, together with proof of service.

9.2 These documents are available for inspection if required.

WHEREFORE I depose to this affidavit in support of proof of service in the above matter.

DEPONENT

I certify that the deponent has acknowledged that he/she knows and understands the contents of this affidavit which was signed and sworn to before me at _____ on this _____ day of _____ 20____, the regulations contained in Government Notice R1258 of 21 July 1972, as amended, and Government Notice R1648 of 19 August 1977, as amended, having been complied with.

COMMISSIONER OF OATHS

Full Names: _____

Address: _____

Capacity: _____

Date Stamp:

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OPTION C: CERTIFICATE OF SERVICE BY EMAIL (SIMPLIFIED)

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IN THE HIGH COURT OF SOUTH AFRICA

[GAUTENG DIVISION, PRETORIA]

CASE NUMBER: _____

CERTIFICATE OF SERVICE BY EMAIL

I, _____ [full names], hereby certify that on
_____ [date] at _____ [time], I sent the following documents via
email:

1. Notice of Motion dated _____
2. Founding Affidavit dated _____
3. [List all documents]

TO THE FOLLOWING PARTIES:

1. FIRST RESPONDENT: _____
Email address: _____
Status: [Delivered / Read / Bounced]

2. SECOND RESPONDENT: _____

Email address: _____

Status: [Delivered / Read / Bounced]

3. THIRD RESPONDENT: _____

Email address: _____

Status: [Delivered / Read / Bounced]

4. NATIONAL CREDIT REGULATOR

Email address: complaints@ncr.org.za

Status: [Delivered / Read]

Attached hereto are:

- Email transmission reports
- Delivery confirmations
- Read receipts (if available)

SIGNATURE

NAME: _____

CAPACITY: _____

DATE: _____

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ANNEXURES TO BE ATTACHED (AS APPLICABLE):

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Annexure "A": Copy of email transmission

Annexure "B": Delivery confirmation receipt

Annexure "C": Registered mail tracking slip

Annexure "D": Courier delivery confirmation

Annexure "E": Fax transmission report

Annexure "F": Proof of hand delivery

Annexure "G": Acknowledgment of receipt (if signed)

Annexure "H": [Any other relevant proof]

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NOTES:

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1. Service must be effected in accordance with Rule 4 of the Uniform Rules of Court.

2. Personal service is the preferred method, but service may also be effected by:

- Registered mail (Rule 4(1)(a)(iv))
- Leaving documents with responsible person (Rule 4(1)(a)(iii))

- Email (if agreed or authorised)
- Service on attorney of record

3. Proof of service must be filed with the court before the matter can be set down for hearing.

4. If service cannot be effected, an application for substituted service may be necessary.

5. Keep copies of all proof of service for your records.

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